

imprisonment, and violation of their civil rights.³⁷ At trial, the jury returned verdicts in favor of all defendants. The Court of Appeals for the Fifth Circuit found the municipal judge immune from liability under both section 1983 and the common law for acts committed within his jurisdiction.³⁸ In addition, the police officers who arrested the clergymen were held to have a qualified immunity. On appeal to the Supreme Court Chief Justice Warren, speaking for the majority, stated:

We find no difficulty in agreeing with the Court of Appeals that Judge Spencer is immune from liability for damages for his role in these convictions. The record is barren of any proof or specific allegation that Judge Spencer played any role in these arrests or convictions other than to adjudge petitioners guilty when their cases came before the court. Few doctrines were more solidly established at common law than the immunity of judges from liability for damages for acts committed within their judicial jurisdiction, as this Court recognized when it adopted the doctrine in *Bradley v. Fisher*. This immunity applies even when the judge is accused of acting maliciously and corruptly, and it "is not for the protection or benefit of a malicious or corrupt judge, but for the benefit of the public whose interest it is that judges should be at liberty to exercise their functions with independence and without fear of consequences." (*Scott v. Stansfield*, L.R. 3 Ex. 220, 223 (1868), quoted in *Bradley v. Fisher* [at 349-50].) It is a judge's duty to decide all cases within his jurisdiction that are brought before him, including controversial cases that arouse the most intense feelings in the litigants. His errors may be corrected on appeal, but he should not have to fear that unsatisfied litigants may hound him with litigation charging malice or corruption. Imposing such a burden on judges would contribute not to principled and fearless decision-making, but to intimidation.³⁹

Chief Justice Warren further declared that section 1983 does not abolish this settled principle of law. Moreover, judicial immunity was equally well established as legislative immunity that was upheld in *Tenney v. Brandhove*.⁴⁰ Because Congress had ample opportunity to amend section 1983 and has failed to do so, it was presumed

37. *Pierson v. Ray*, 352 F.2d 213, 216-17 (5th Cir. 1965), *aff'd in part & rev'd in part*, 386 U.S. 547 (1967).

38. *Id.* at 217.

39. *Pierson v. Ray*, 386 U.S. 547, 553-54 (1967).

40. See *Tenney v. Brandhove*, 341 U.S. 367, 376 (per curiam) (Congress did not intend Civil Rights Act of 1871 to abrogate legislative immunity).

that Congress intended to uphold the validity of judicial and legislative immunity.⁴¹

It should be noted that although Mr. Justice Douglas upheld the general principle of judicial immunity, he was the sole dissenter in *Pierson v. Ray*.⁴² He recognized that judges should be exempt from liability for the consequences of their honest mistakes, but would have adopted the doctrine that a judge should be liable "for the knowing and intentional deprivation of a person's civil rights."⁴³ Justice Douglas also stated that the doctrine of judicial immunity is based on a corollary of the doctrine of sovereign immunity, namely, that the King could do no wrong.⁴⁴ This statement is highly questionable in light of the fact that none of the opinions from *Floyd and Barker* through *Bradley v. Fisher* equated the doctrine of judicial immunity with the maxim "The King can do no wrong." Every decision following Lord Coke based the doctrine on the need for judicial independence rather than the doctrine of sovereign immunity. Indeed, as previously discussed, Coke spent much of his judicial career attempting to subject the King to the law, not suggesting that he should rise above it.⁴⁵ Nevertheless, even Justice Douglas would have preserved judicial immunity save for the most outrageous conduct in which a judge knowingly and deliberately violates a person's civil rights.⁴⁶

The next challenge to judicial immunity occurred in the case of *Stump v. Sparkman*.⁴⁷ In *Stump*, the mother of a slightly retarded fifteen year old filed an ex parte petition with an Indiana circuit

41. *Pierson v. Ray*, 386 U.S. 547, 554-55 (1967).

42. *Id.* at 566 (Douglas, J., dissenting). Justice Douglas believed judges who make honest mistakes should not be subject to civil liability for those reasons enumerated by the majority. *Id.* (Douglas, J., dissenting). He believed, however, that the language and legislative history of the Civil Rights Act of 1871 compelled the conclusion that Congress did not intend to exclude all judicial acts from liability. *Id.* at 561-63 (Douglas, J., dissenting). Only by subjecting the judiciary to liability could Congress guarantee the protections of the Act by ensuring judges would not impinge upon civil rights. *Id.* at 566-67 (Douglas, J., dissenting).

43. *Id.* at 566 (Douglas, J., dissenting).

44. *Id.* at 565 n.5 (Douglas, J., dissenting).

45. See *supra* notes 4-6 and accompanying text (discussing conflicting views as to whether King subject to judiciary).

46. *Pierson v. Ray*, 386 U.S. 547, 564 (1967) (Douglas, J., dissenting). Justice Douglas believed that preserving absolute judicial immunity would allow a judge to "vent his spleen" on particular parties or groups without fear of recourse. *Id.* (Douglas, J., dissenting). According to Justice Douglas, such a result would be monstrous and undermine the effectiveness of the Civil Rights Act of 1871. *Id.* (Douglas, J., dissenting).

47. See *Stump v. Sparkman*, 435 U.S. 349, 364 (1978) (judges immune from liability for damages even if in error).

court judge asking the court to order her daughter to undergo a tubal ligation. The circuit court judge granted the petition. Two years after the operation, the young woman, who was now married, discovered for the first time that she had been sterilized during the court authorized procedure. Alleging a violation of her rights under section 1983, the woman brought action in federal district court against her mother, the physicians, the hospital where the ligation had been performed, and against Judge Stump.⁴⁸ The district court dismissed the complaint on the ground that Judge Stump was the only state actor and was immune from such an action because he acted in his judicial capacity. The Court of Appeals for the Seventh Circuit reversed on the ground that Judge Stump had not acted within his jurisdiction.⁴⁹ The circuit court held that the judge forfeited his immunity because he failed to comply with elementary principles of due process.⁵⁰

Speaking for the Supreme Court, Mr. Justice White reversed the circuit court's decision, holding that a trial judge of general jurisdiction in Indiana has the broadest grant of judicial authority.⁵¹ Justice White distinguished the erroneous exercise of jurisdiction from the clear absence of jurisdiction.⁵² In commenting upon judicial immunity, he observed:

Despite the unfairness to litigants that sometimes results, the doctrine of judicial immunity is thought to be in the best interests of "the proper administration of justice . . . [,for it allows] a judicial officer, in exercising the authority vested in him [to] be free to act upon his own convictions, without apprehension of personal consequences to himself." [Citing] *Bradley v. Fisher*, 13 Wall., at 347. The fact that the issue before the judge is a controversial one is all the more reason that he should be able to act without fear of suit.⁵³

48. *Sparkman v. McFarlin*, 552 F.2d 172, 173 (7th Cir. 1977), *rev'd*, *Stump v. Sparkman*, 435 U.S. 349 (1978).

49. *Id.* at 176. Acknowledging the validity of judicial immunity, the court held that the doctrine does not protect a judge acting in clear absence of all jurisdiction. *Id.* at 174. Because Judge Stump lacked specific statutory or common law authority to sterilize the petitioner on ex parte application of the petitioner's mother, the court ruled that Judge Stump acted without jurisdiction and therefore was not protected by the doctrine of judicial immunity. *Id.* at 175-76.

50. *Id.* at 176.

51. *Stump v. Sparkman*, 435 U.S. 349, 359-60 (1978).

52. *Id.* at 349. It may well be that the Court of Appeals for the Seventh Circuit, accustomed to looking for specific statutory authorization in order to empower federal judges to entertain an action, may have applied the same analysis erroneously to a state judge of general jurisdiction.

53. *Id.* at 363-64.

Justices Marshall, Stewart, and Powell dissented, not on the ground of any disagreement with the general doctrine of judicial immunity, but asserted that Judge Stump's conduct did not amount to a judicial act because of his failure to observe the normal attributes of judicial process.⁵⁴

The Court next addressed the issue of judicial immunity in *Supreme Court of Virginia v. Consumer's Union*,⁵⁵ in which a consumers' union that wished to publish a directory of lawyers, including their prevailing fees, sued the Supreme Court of Virginia for refusing to allow the advertisement of lawyer's fees. The Consumer's Union sought relief in federal court to enjoin the Supreme Court of Virginia from enforcing its ethical rule against lawyer advertising. The Supreme Court of the United States sidestepped the question of judicial immunity in reviewing the district court's injunction prohibiting the Supreme Court of Virginia from enforcing its ethical rule.⁵⁶ Justice White, again speaking for the majority, held that the promulgation and enforcement of rules governing attorneys' ethical conduct are legislative functions and, thus, judges are immune from declaratory or injunctive relief for legislative acts under *Tenney v. Brandhove*.⁵⁷ He did suggest, however, that the Virginia court would be subject to declaratory and injunctive relief, as well as the assessment of attorneys' fees in its enforcement capacity as opposed to its legislative or judicial capacity.⁵⁸

III. THE RULE OF *PULLIAM V. ALLEN* AND ITS RAMIFICATIONS

The decision in *Pulliam v. Allen*⁵⁹ must be considered in the context of nearly four hundred years of unbroken adherence to the doctrine of judicial immunity with respect to superior court judges, and lower court judges of record provided they acted within their jurisdiction.⁶⁰

54. *Id.* at 365 (Stewart, J., dissenting). The dissenters believed Judge Stump's act was not judicial because: "there was no 'case', there were no litigants, there was and could be no appeal, and there was not even the pretense of principled decision making." *Id.* at 368-69 (Stewart, J., dissenting). Because Judge Stump's decision lacked these attributes of a judicial proceeding, the dissenters felt his act was not judicial and hence he should not be afforded judicial immunity. *Id.* at 369 (Stewart, J., dissenting).

55. 446 U.S. 719 (1980).

56. See *id.* at 731 (issue is one of legislative immunity because act was legislative not judicial).

57. See *Tenney v. Brandhove*, 341 U.S. 367, 376 (1951) (Congress did not intend to abrogate legislative immunity); see also *supra* note 33 (discussing *Tenney* case).

58. *Supreme Court of Virginia v. Consumer's Union*, 446 U.S. 719, 736-37 (1980).

59. 104 S. Ct. 1970 (1984).

60. It should be noted, contrary to the suggestion set forth in Feinman and Cohen, *Suing*

In *Pulliam*, Gladys Pulliam, a magistrate for the county of Culpeper in the Commonwealth of Virginia, set bail for Richmond Allen and Jessie Nicholson, the plaintiffs, for nonjailable offenses which they had committed. As a result, both Allen and Nicholson were incarcerated for failure to make bond, although they were charged with offenses which carried maximum penalties of \$500 and \$100 fines respectively.⁶¹ After disposition of the original cases, Allen and Nicholson sued Magistrate Pulliam pursuant to section 1983. A federal district court judge found that Magistrate Pulliam regularly required bond for nonincarcerable offenses. The judge then held such practice to be unconstitutional on both due process and equal protection grounds and enjoined Magistrate Pulliam from further actions of a similar nature.⁶² The court further directed that "any pretrial detention for persons arrested for Class 3 and Class 4 misdemeanors on the grounds that the person is lawfully deemed likely to be a danger to himself or to others may last only so long as such danger persists. . . ."⁶³

In addition to injunctive relief, the district court awarded the sum of \$7,691.09 to the plaintiffs as costs including a counsel fee of \$7,038.00 pursuant to 42 U.S.C. section 1988. Magistrate Pulliam appealed only with respect to the award of a counsel fee against her. The Court of Appeals for the Fourth Circuit determined that the magistrate was not immune from either the award of counsel fees, nor from prospective injunctive relief.⁶⁴

On certiorari, the Supreme Court addressed the issues of whether injunctive relief might be awarded against a judicial officer and, whether incident to such relief, an award of attorney's fees might be made. The Court answered both questions in the affirmative.⁶⁵

Judges: History and Theory, 31 S.C.L. REV. 201, 214-16 (1980) that only superior court judges were granted such immunity, that Lord Coke in *Floyd and Barker* specifically declared that such immunity would apply to justices of the peace as well as to the judge of assise. 77 Eng. Rep. 1305, 1306-07 (1607). A justice of the peace in England then, as now, is a judicial officer of limited jurisdiction, but is a member of a court of record. It is rare for a judge in the United States now not to be a member of a court of record which is defined as "a court that is required to keep a record of its proceedings and that may fine or imprison." Black's Law Dictionary 319 (5th ed. 1979).

61. 104 S. Ct. at 1972.

62. *Allen v. Burke*, 690 F.2d 376, 377-78 (4th Cir.), *aff'd*, *Pulliam v. Allen*, 104 S. Ct. 1970 (1982).

63. 104 S. Ct. at 1973 n.2.

64. *Allen v. Burke*, 690 F.2d 376, 379 (4th Cir.), *aff'd*, *Pulliam v. Allen*, 104 S. Ct. 1970 (1982).

65. 104 S. Ct. at 1982. The court held that Congress clearly intended attorney's fees to be available under section 1988 for costs incurred in a section 1983 action. *Id.* Although the

Mr. Justice Blackmun, writing for the majority, conceded at the outset that at common law "there was no such thing as an injunction against a judge."⁶⁶ Injunctive relief was an equitable remedy which the Chancellor could only impose against the party or parties in proceedings before other courts.⁶⁷ Justice Blackmun pointed out, however, that this limitation did not stem from judicial immunity, but rather from the substantive confines of the Chancellor's authority.

Blackmun cited the practice of the Court of King's Bench issuance of writs of prohibition to prevent ecclesiastical courts from acting outside their jurisdiction.⁶⁸ Apparently, Justice Blackmun analogized the issuance of a writ of prohibition from the Court of King's Bench to ecclesiastical or inferior courts to the granting of injunctive relief by a federal court against a state judicial officer. He conceded that "[t]he relationship between the King's Bench and inferior courts is not precisely paralleled in our system by the relationship between the state and federal courts."⁶⁹

Although this statement by Justice Blackmun is true, it is scarcely exhaustive or descriptive. Indeed, until the *Pulliam* opinion, the relationship between state and federal courts has never been described as one of a superior court toward an inferior one. The Court of King's Bench, as well as the ecclesiastical courts, were part of a unitary judicial system.⁷⁰ In substantially every state, courts of general jurisdiction, and almost invariably the highest court of each state, are authorized to issue writs of prohibition and other prerogative writs with respect to lower courts of the same jurisdiction.⁷¹ Although Federal Rules of Appellate Procedure provide for the issuance of writs of mandamus or prohibition with respect to lower federal courts, they also provide that a respondent judge may elect not to appear in the proceeding without conceding the issues raised in the petition.⁷² In effect, the writ operates against the party in interest as opposed to the judges of the federal district court.⁷³

doctrine of judicial immunity precluded an award of damages, section 1988 mandates an award of attorney's fees. *Id.*

66. *Id.* at 1974.

67. *Id.* (citing 2 J. STORY ON EQUITY JURISPRUDENCE § 875, at 72 (11th ed. 1873)).

68. 104 S. Ct. at 1976.

69. *Id.* at 1978.

70. See 3 W. BLACKSTONE, COMMENTARIES * 112.

71. See generally 63A AM. JUR. 2D Prohibition § 75 (1984) (discussing constitutional and state provisions governing state court jurisdiction).

72. FED. R. APP. P. 21(b).

73. 104 S. Ct. at 1986 (Powell, J., dissenting).